

		prejudice the opposing party in the proceeding.” (<i>Sundholm v. Hollywood Foreign Press Assn.</i> (2024) 99 Cal.App.5th 1330, 1334.) Defendant failed to present any evidence that Plaintiff’s counsel received any confidential information (let alone attorney-client privileged information) that would prejudice Defendant in this litigation. Defendant fails to explain in what capacity Arian Eghbali provided “professional assistance” but notably does not contend it was legal assistance or representation. Defendant also does not explain how employee payroll information and internal operational information could be used adversely against him in this litigation. Moreover, Defendant relies entirely on speculation. There is no evidence Plaintiff’s counsel even received any confidential information. Defendant has not shown grounds for disqualification. The motion to disqualify is therefore DENIED. Counsel for Plaintiff shall give notice of this ruling.
12	Karakalos v. Colonial Family Funeral Care etc. et al.	Before the Court at present are the Demurrer and Motion to Strike filed on 3/23/26 by Defendants Colonial Family Funeral Care dba Chapman Funeral Homes and Mary J. Harmon, (“Defendants”), as to the Second Amended Complaint (“SAC”) filed on 2/17/26 by Plaintiff Mary Karakalos (“Plaintiff”). <u>The Demurrer:</u> The Demurrer is directed to the Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action (each a “COA”) in the SAC. The Demurrer as to COA 4 is OVERRULED; the Demurrer as to COAs 5-8 is SUSTAINED, without leave to amend. COA 4 now attempts to assert a claim for “Interference With Right to Possession and Control of Human Remains,” which alleges intentional conduct and is thus distinct from the claims in COAs 1 and 2. The Demurrer as to COA 4 is therefore OVERRULED. However, the additional COAs asserted as COAs 5-8, which were added without leave to do so, appear to effectively duplicate COA 4. None of those COAs state a cognizable claim distinct from COA 4. The Motion is therefore GRANTED as to COAs 5-8, without further leave to amend. <u>The Motion to Strike:</u> In light of the ruling on the Demurrer, the Motion to Strike as to COAs 5-8 is MOOT. The Motion is otherwise DENIED. The allegations presented, in promising to provide but then intentionally failing to actually provide the remains at issue to Plaintiff in a timely manner, are sufficient to support the request for punitive damages in ¶ 42 and ¶ 51, for pleading purposes. Defendants are to file their Answer to the SAC within 10 days Case Management Conference is CONTINUED to October 30, 2026, at 9:30 a.m. Plaintiff to give notice of these rulings.

13 Farrow v. Goulis

The motion to stay proceedings filed by defendants Kelly Goulis, Chander Burgos, and Rohit Chauhan (collectively, Defendants) is **GRANTED**.

Defendants move to stay this proceeding pending resolution of the related probate matter, *In the Matter of the Elizabeth Thermos 1998 Trust, as Amended and Restated*, Los Angeles Superior Court Case No. 22STPB12506, involving plaintiff Maria Farrow, as Trustee of the Elizabeth Thermos 1998 Trust dated May 21, 1998, as amended and restated (Plaintiff) and defendant Kelly Goulis.

"Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; see also Code Civ. Proc., § 128, subd. (a) ["Every court shall have the power . . . (3) [t]o provide for the orderly conduct of proceedings before it . . . [and] (8) [t]o amend and control its process and orders so as to make them conform to law and justice."].)

"When an action is brought in a court of this state involving the same parties and the same subject matter as an action already pending in a court of another jurisdiction, a stay of the California proceedings is not a matter of right, but within the sound discretion of the trial court. In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced." (*Farmland Irr. Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.)

The Court finds a stay of the instant action pending resolution of the probate proceeding warranted to avoid inconsistent rulings and to promote judicial efficiency. Both parties agree that the validity of the trust amendment that names Plaintiff as trustee of the Elizabeth Thermos 1998 Trust dated May 21, 1998, as amended and restated (Thermos Trust) is currently being litigated in the probate matter. As Defendants argue, a determination by the probate court that said trust amendment is invalid would nullify any actions taken by Plaintiff as purported trustee (including electing herself as director of Urethane Products Corporation (UPC) based on her standing as trustee of the Thermos Trust) and could render the instant action moot. If this Court proceeds with the instant action and makes a finding as to the validity of UPC director elections, such a finding could potentially conflict with a determination of trust validity made by the probate court. Moreover, as Defendants argue, in adjudicating the instant action, this Court would necessarily be confirming Plaintiff's authority as trustee, which determination could potentially conflict with findings in the probate court.

Although Plaintiff is correct that the probate and civil actions will decide different issues, both cases involve the same underlying

	subject matter – i.e., Plaintiff’s authority as trustee of the Thermos Trust. As that issue is already being litigated in the probate court, a stay of the current proceeding pending resolution of the probate case is warranted to avoid conflicting rulings and duplicative litigation. Furthermore, the issue of Plaintiff’s authority as trustee is best determined by the probate court as that court has exclusive jurisdiction of proceedings concerning the internal affairs of trusts. (See Probate Code, § 17000(a); <i>Harnedy v. Whitty</i> (2003) 110 Cal.App.4th 1333, 1345 [“Internal trust affairs, for example, include modification of the terms of the trust, changes in a designated successor trustee, other deviation from trust provisions, authority over the trustee’s acts, or the administration of the trust’s financial arrangements.”].) Plaintiff argues repeatedly that her powers as trustee have not been suspended and she thus has standing and the authority to proceed with this section 709 action. But this misses the point. The issue is not whether Plaintiff currently has standing to proceed with this action, but whether this Court should exercise its discretion to stay the action pending resolution of the probate case. For the reasons discussed above, the Court will do so. Plaintiff has not adequately shown or offered sufficient evidence to support the contention that UPC’s operations will be harmed by a stay. Accordingly, the motion is GRANTED. A Status Conference re: Status of Probate Matter is scheduled for October 16, 2026, at 9:30 a.m. in Dept. N17. The parties’ requests for judicial notice are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The parties’ evidentiary objections are OVERRULED. Defendants shall give notice.
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